Anchor cases

72 cases that carry a test · grouped by syllabus part

Interpretation and amendment

Manila Prince Hotel v. GSIS (1997): Provisions are presumed self-executing; Art. II policies generally are not. Filipino First (Art. XII, Sec. 10(2)) is self-executing.

Endencia v. David (1953): Congress cannot interpret the Constitution by statute; interpretation belongs to the courts.

Francisco v. House of Representatives (2003): Impeachment is reviewable where the Constitution sets limits; 'initiate' = filing plus referral; one-year bar.

Santiago v. COMELEC (1997): Art. XVII, Sec. 2 needs an enabling law; RA 6735 is inadequate; COMELEC cannot fill the gap.

Javellana v. Executive Secretary (1973): Six Justices found the 1973 Constitution not validly ratified, yet the petitions were dismissed; acquiescence.

Lambino v. COMELEC (2006): Initiative proposes amendments only, not revisions (quantitative and qualitative tests); people must sign the full text.

Kapatiran Party v. Congress (2026): Art. II, Sec. 26 is mandatory; 39 years of inaction is grave abuse; Congress defines 'dynasty'.

Judicial review

Demetria v. Alba (1987): No blanket authority to transfer funds: actual savings, existing item, own branch (Art. VI, Sec. 25(5)).

Angara v. Electoral Commission (1936): Judicial review allocates constitutional boundaries; it does not assert judicial supremacy; actual case and lis mota.

Miranda v. Aguirre (1999): Whether constitutional conditions (e.g., a plebiscite) were met is justiciable, not political.

KAPIT v. City of Manila (2026): Supervening repeal makes a case moot; exceptions applied strictly; associations must show capacity and members' consent.

White Light Corporation v. City of Manila (2009): Third-party standing allowed; banning short-time motel rates is unreasonable police power.

Montesclaros v. COMELEC (2002): A bill is not ripe for review: no rights, no duties, only an advisory opinion.

Sanlakas v. Executive Secretary (2004): Moot but decided: capable of repetition yet evading review; only legislators had standing.

Tañada v. Tuvera (1985): Citizens may enforce a public right without special injury; all laws and implementing rules must be published.

Chavez v. PEA and Amari (2002): Citizen standing to enforce the right to information and the ban on corporations acquiring public lands.

IBP v. Zamora (2000): A general interest in the rule of law is not standing; transcendental importance may relax it; calling-out power reviewable for grave abuse.

Tolentino v. COMELEC (2004): Voters have standing to question an election; the law itself can serve as the call for a special election.

Falcis III v. Civil Registrar General (2019): Passage of a law alone is no actual case; no injury, wrong respondent, hierarchy of courts.

Territory

Magallona v. Ermita (2011): Baselines law valid: UNCLOS neither adds to nor reduces territory; KIG and Scarborough as regimes of islands.

The South China Sea Arbitration (Philippines v. China) (2016): Nine-dash line has no legal basis beyond UNCLOS; no Spratly feature generates an EEZ.

Province of North Cotabato v. GRP Peace Panel on Ancestral Domain (2008): MOA-AD void: the Executive cannot guarantee amendments or create an associative juridical entity.

Citizenship

Tecson v. COMELEC (2004): An illegitimate child of a Filipino father is Filipino if paternity is proven (1935 Constitution).

David v. Senate Electoral Tribunal (2016): Foundlings are presumed natural-born; Poe qualified as Senator.

Co v. HRET (1991): Election of citizenship may be implied from positive acts like voting; residence means domicile.

Bengson III v. Cruz (2001): Repatriation restores natural-born status.

Maquiling v. COMELEC (2013): Using a foreign passport after renouncing recants the renunciation: disqualified.

Frivaldo v. COMELEC (1996): Citizenship of a local official is required at proclamation or start of term; repatriation retroacts.

Gana-Carait v. COMELEC (2022): RA 9225 renunciation applies only to naturalized dual citizens who reacquire; dual citizens by birth need not renounce.

Suffrage

Kabataan Party-List v. COMELEC (2015): Biometrics validation is a registration procedure, not a substantive requirement; passes strict scrutiny.

Palatino v. COMELEC (2009): COMELEC cannot cut short registration that runs until 120 days before the election unless it proves necessity.

Macalintal v. COMELEC (2003): Overseas absentee voting valid; a JCOC approving COMELEC rules violates its independence.

Government and inherent powers

Republic v. Sandiganbayan (Ramas-Dimaano) (2003): During the interregnum there was no Bill of Rights, but the revolutionary government was bound by the ICCPR and UDHR.

SPARK v. Quezon City (2017): Parens patriae supplements parents; curfews on minors face strict scrutiny (least restrictive means).

Philippine Agila Satellite v. Trinidad-Lichauco (2006): Not a suit against the State if it only nullifies an ultra vires act or sues the official personally for torts.

Minucher v. Court of Appeals (2003): A foreign agent acting within official functions with host-State consent shares his State's immunity.

Arigo v. Swift (2014): US warship officers immune for official acts; the flag State answers internationally; kalikasan cannot collect damages.

Republic v. Fetalvero (2019): Public funds cannot be garnished; money claims go to COA.

Zabal v. Duterte (2019): Boracay closure is valid police power: lawful subject, lawful means; effects on travel incidental.

Iloilo I Electric Cooperative v. Executive Secretary (2024): Franchises are never exclusive and yield to the common good; non-impairment yields to police power.

Congress: composition and party-list

Atong Paglaum, Inc. v. COMELEC (2013): Party-list is not only for sectoral parties; national and regional parties need not be marginalized; six parameters.

Ang Ladlad LGBT Party v. COMELEC (2010): COMELEC cannot deny registration on moral or religious grounds; equal protection.

Lico v. COMELEC (2015): Once a party-list nominee is proclaimed, sworn in and seated, qualification issues go to the HRET.

An Waray Party-List v. COMELEC (2024): COMELEC may cancel a group's registration even after it has a seat; no prescription.

Duterte Youth v. COMELEC (2024): Nominee withdrawal and substitution deadlines are mandatory; voters have a right to know the nominees.

Albano v. COMELEC (2023): Congress may set nominee qualifications, but they must satisfy equal protection; losing-candidate ban void.

Marcos v. COMELEC (1995): Domicile of origin is lost only by clear abandonment; a COC mistake does not defeat actual residence.

Mangudadatu v. COMELEC (2025): An incumbent still serving where elected cannot claim a new residence; second-placer rule abandoned.

Hagedorn v. House of Representatives (2025): COMELEC must hold a special election 60–90 days after a House vacancy without waiting for a House resolution.

Congress: officers, discipline, privileges

Avelino v. Cuenco (1949): Quorum counts members within the coercive jurisdiction of the House.

Tinio v. Duterte (2023): Enrolled bill and Journal are conclusive; quorum presumed unless questioned by roll call.

Arroyo v. De Venecia (1997): Violating internal rules alone is not grave abuse; rules may be waived.

Osmeña v. Pendatun (1960): Speech privilege does not protect from one's own House; what is disorderly is for the House.

Astorga v. Villegas (1974): Approval by Congress, not the signatures, makes a law; with no valid enrolled bill, the Journal governs.

People v. Jalosjos (2000): Arrest privilege covers offenses up to six years only; election does not free a convicted member.

Jimenez v. Cabangbang (1966): Speech privilege covers official legislative acts, not open letters or press releases.

Liban v. Gordon (2009 / 2011): PNRC chairmanship is not a government office; RA 95 upheld in 2011 (PNRC sui generis).

Electoral tribunals and the CA

Bondoc v. Pineda (1991): Tribunal members have security of tenure; no removal for voting against one's party.

Reyes v. COMELEC (2013): HRET jurisdiction begins on proclamation, oath and assumption of office.

Daza v. Singson (1989): CA seats may be reorganized after a permanent change in party alignment.

Guingona v. Gonzales (1992): Proportional representation in the CA is mandatory; no rounding up fractions.

Powers of Congress and delegation

Sema v. COMELEC (2008): Only Congress may create legislative districts, so only Congress creates provinces and cities.

ABAKADA Guro Party List v. Purisima (2008): After enactment Congress may only scrutinize and investigate; a JCOC approving IRRs is a legislative veto.

Lidasan v. COMELEC (1967): A misleading title voids the law; inseparable parts fall together.

Appropriations

Philconsa v. Enriquez (1994): Inappropriate GAA provisions may be vetoed separately; conditions cannot be vetoed without the item.

Belgica v. Executive Secretary (2013): PDAF unconstitutional: post-enactment legislator discretion; singular correspondence.

Araullo v. Aquino III (2014): DAP partly void: mid-year 'savings', cross-border transfers, no-item projects; unprogrammed funds need excess revenue.

Macalintal v. COMELEC (2023): Election postponements need compelling reasons; RA 11935 void (disguised transfer of appropriations).

Pimentel v. House of Representatives (2025): The GAA cannot amend substantive law; PhilHealth fund sweep void; only the President augments.

Taxation

Tolentino v. Secretary of Finance (1994): The revenue bill, not the law, must originate in the House; Senate may substitute; urgency waives readings and printing.

Lung Center of the Philippines v. Quezon City (2004): Charitable exemption covers only property actually, directly and exclusively used for charity.

John Hay PAC v. Lim (2003): Only Congress grants tax exemptions, expressly, by a majority of all members; not by proclamation.